

Air Force Research Laboratory (AFRL)
Enterprise Commercial Solutions Opening (CSO)

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12 **Record of Revisions**

Revision Number	Description of Changes	Date

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Table of Contents

1 OVERVIEW4

2 AUTHORITY4

3 SCOPE4

4 INNOVATIVE SOLUTIONS4

5 CSO WITH SPIRALS5

6 TYPES OF AWARDS5

7 ONE-STEP AND TWO-STEP SPIRALS5

8 EVALUATION7

9 CATEGORIZATION7

10 SELECTION8

11 OTHER AWARD CONSIDERATIONS8

12 ADDITIONAL INFORMATION9

13 ATTACHMENTS AND APPENDICES 10

1 OVERVIEW

The Air Force Research Laboratory (AFRL) Enterprise Commercial Solutions Opening (CSO) serves as the overarching enterprise announcement providing the framework for the issuance of competitive solicitations (i.e. Spirals), which will seek innovative, commercial solutions to meet the mission of the AFRL enterprise. Innovative products and/or services competitively selected by peer review of proposals resulting from a general solicitation are considered commercial notwithstanding the definition under FAR Subpart 2.101.

2 AUTHORITY

This CSO is issued in accordance with DFARS Subpart 212.70, for the acquisition of innovative commercial products or commercial services. The use of a CSO is permanently authorized by section 803 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2022 (Pub. L. 117-81) codified at 10 USC 3458.

3 SCOPE

The scope of this CSO encompasses the Areas of Interest (AOI) identified in **Attachment 1 Areas of Interest (AOI)**. The Government seeks to obtain innovative solutions or new capabilities that fulfill requirements, close capability gaps, and/or provide potential technological advancements. Meaningful proposals with varying technical or scientific approaches are anticipated.

The Government reserves the right to amend the requirements of this CSO and each subsequent Spiral.

4 INNOVATIVE SOLUTIONS

Resulting solutions awarded under the CSO shall meet the definition of “innovative” in accordance with (IAW) 10 USC 3458 and implemented by DFARS 212.7001:

Innovative means—

- (1) Any technology, process, or method, including research and development, that is new as of the date of submission of a proposal; or
- (2) Any application that is new as of the date of submission of a proposal of a technology, process, or method existing as of such date.

A note on innovative studies and analysis (S&A) that may be funded with Operations and Maintenance (O&M) appropriations: The effort must also meet the definition of S&A; the working definition of which is “short term (preferably 1 year), non-developmental, investigative work that addresses urgent and the near-term needs, issues, and consultative questions.”

99
100 **5 CSO WITH SPIRALS**

101 Both enterprise-wide (i.e. centralized) and decentralized Spirals may be issued by either
102 AFRL/PK or an issuing Technical Directorate, respectively. This CSO will be active
103 indefinitely for the issuance of the Spirals and will be updated annually, until terminated. It
104 is the responsibility of prospective offerors to monitor the Government Point of Entry (GPE),
105 SAM.gov (<https://sam.gov>), for additional information pertaining to this CSO as well as for
106 future Spirals issued hereunder.

107
108 Prospective offerors shall adhere to this enterprise CSO as well as the information
109 contained within the Spiral. Spirals will identify the areas of interest and period of
110 performance requirements to which prospective offerors shall focus their solutions, as well
111 as specific submission instructions/dates/times, and evaluation criteria. Each Spiral will be
112 announced on the GPE.

113
114 The Government is not obligated to make any awards as a result of the CSO Spirals. All
115 awards are subject to the availability of funds and successful negotiations. Any resultant
116 award has the potential for an increase in value and level of effort as the Government
117 explores the innovative product/solution. The Government is not responsible for any
118 monies expended by the offeror prior to the issuance of any award, to include, but not
119 limited to, bid and proposal preparation costs.

120
121 **6 TYPES OF AWARDS**

122 The Government intends to award FAR Part 12 fixed-price type contracts, including fixed-
123 price incentive; however, it reserves the right to award Other Transactions for Prototype
124 (OTP) pursuant to 10 USC 4022 (to include follow-on production agreements).

125 Prospective offerors are encouraged to review 10 USC 4022, including 10 USC 4022(f).
126 The Government may incrementally fund any or all awards under this CSO.

127
128 **7 ONE-STEP AND TWO-STEP SPIRALS**

129 Spirals issued under this CSO may utilize either a One-Step or a Two-Step process as
130 outlined below and may be Open or Closed.

131
132 **Open Spirals** provide an avenue for Industry to submit innovative solutions in alignment
133 with the AOIs at any given time; Open Spirals may be issued by AFRL/PK (enterprise) or an
134 issuing Technical Directorate (decentralized).

Closed Spirals will be issued by a Technical Directorate (decentralized) and narrow the area of interest for specific requirements and require submission by a specified time. Late bid and proposal provisions IAW FAR 52.212-1(c) apply. Submissions are evaluated upon receipt. Submission under an Open Spiral shall not be performed to circumvent a Decentralized Spiral issued by a Technical Directorate.

One-Step Spiral for Commercial Solutions Proposal (CSP):

This process requires the prospective offeror to submit a CSP in response to a One-Step Spiral.

Contents: The CSP shall include a technical proposal, price proposal, and Statement of Work (SOW) in accordance with **Attachment 3: CSP Template**, or as otherwise directed in the Spiral. The Government reserves the right to require a Pitch in conjunction with, and as part of, the CSP.

Evaluation: The CSP will be evaluated in accordance with Section 8 of this CSO unless varying criteria is established at the Spiral level. The Government reserves the right to select all, some, or none of the submissions. At the conclusion of the evaluation, the offeror will be notified of the CSP categorization as defined in Section 9.

Two-Step Spiral for Commercial Solutions Brief (CSB) and CSP:

This process requires the prospective offeror to submit a CSB in response to a Two-Step Spiral.

Step-One Contents: The CSB shall include a PowerPoint Briefing and White Paper in accordance with **Attachment 2: CSB Template**, or as otherwise directed in the Spiral. The Government reserves the right to require a Pitch in lieu of the CSB.

Evaluation: The CSB will be evaluated in accordance with Section 8 of this CSO unless varying criteria is established at the Spiral level. A CSB that does not meet the compliance or evaluation criteria will not be considered further. The Government reserves the right to select all, some, or none of the submissions. At the conclusion of the CSB evaluation, the offeror will be notified of the CSB categorization as defined in Section 9. An offeror whose CSB is categorized as Selectable will be invited to move forward to Step-Two.

Step-Two Request for CSP: The designated Contracting Officer (CO) will issue a Request for CSP to the offeror(s) selected to move forward. Contents: The offeror shall submit a CSP that includes a technical proposal, price proposal and SOW in accordance with

Attachment 3: CSP Template, or as otherwise directed in the Spiral. The submission due date will be included in the Step-Two Request for CSP.

Evaluation: The CSP will be evaluated in accordance with Section 8 of this CSO unless varying criteria is established at the Spiral level. The Government reserves the right to select all, some, or none of the submissions.

8 EVALUATION

General CSO Compliance: The CSB and/or CSP will be reviewed for compliance and to determine whether the commercial solution is "innovative" pursuant to DFARS 212.7001.

Method of Evaluation: The method of evaluation for CSB and CSP will include scientific, technological, or other subject-matter expert peer review process.

CSB Evaluation Factors: The Government will evaluate using the factors below unless otherwise specified at the Spiral level:

- a. Technical Merit and Applicability
- b. Funding Availability

CSP Evaluation Factors: The Government will evaluate using the factors below unless otherwise specified at the Spiral level. The evaluation factors are of equal importance.

- a. Technical Merit and Applicability
- b. Importance to Agency Programs
- c. Price
 - i. Price shall be considered to the extent appropriate, but at a minimum price will be determined fair and reasonable using the procedures at DFARS subpart 212.209. The CO will use market research as the primary method to determine the price fair and reasonable. The CO may request information from the offeror regarding recent purchase prices paid by the Government and/or commercial customers for the same or similar commercial items.
- d. Funding Availability

9 CATEGORIZATION

CSB and CSP submissions will be categorized as either Selectable, Selectable/Insufficient Funding, or Not Selectable as defined below:

Selectable: Based upon the evaluation criteria, the CSB/CSP is selectable and sufficient funding is available.

Selectable/Insufficient Funding: Based upon the evaluation criteria, the CSB/CSP is selectable; however, insufficient funding is available.

Not Selectable: Based upon the evaluation criteria, the CSB/CSP is not selectable based. Even if there is sufficient funding, the submission should not be funded.

The Government reserves the right to award all, some, or none of a proposal. When the Government elects to award only part of a proposal, the selected part may be categorized as Selectable, though the proposal, as a whole, may not merit such a categorization.

10 SELECTION

CSB Selection: If a CSB is categorized as Selectable, the offeror will be notified that it has been selected to move to the Step-Two Request for a CSP.

CSP Selection: Award(s) will be made once a CSP is categorized as Selectable. The CO reserves the right to negotiate proposed scope of work, price, and other terms and conditions as may be required.

If a CSB or CSP has Technical Merit and Applicability, but there is insufficient funding, the CO may request that the solution be maintained electronically for consideration and subsequent funding for up to one year after submission.

11 OTHER AWARD CONSIDERATIONS

SAM.gov. To be considered for award, offerors must be registered in the System for Award Management (SAM) at <https://sam.gov>, be considered responsible within the meaning of FAR Part 9.1, "Responsible Prospective Contractors," have a satisfactory performance record, and otherwise be eligible for award based on federal law and regulation.

Safeguarding Covered Defense Information (CDI). Awards shall include either DFARS 252.240-7997 (Deviation 2026-O0025), *NIST SP 800-171 DoD Assessment Requirements*, (FAR-based contracts), or equivalent (OTP), and the awardee shall be required to implement the NIST Special Publication (SP) 800-171 in effect at the time of the Spiral solicitation, or as otherwise authorized.

Additional Compliance Criteria for 10 USC 4022 OTPs: If the Government decides to pursue a 10 USC 4022 OTP, the CSP will be evaluated to determine if the following requirements are met:

- a. Meets the definition of a prototype;
- b. Mission effectiveness is demonstrated;
- c. Meets the requirements for eligibility at 10 USC 4022(d):
 - i. There is at least one nontraditional defense contractor or nonprofit research institution participating to a significant extent in the prototype project; or
 - ii. All significant participants in the transaction other than the Federal Government are small businesses (including small businesses participating in a program described under Section 9 of the Small Business Act (15 U.S.C. 638)) or non-traditional defense contractors; or
 - iii. At least one-third of the total cost of the prototype project is to be paid out of funds provided by sources other than the Federal Government; or
 - iv. The Senior Procurement Executive for the agency determines, in writing, that exceptional circumstances justify the use of a transaction that:
 - a) Provides for innovative business arrangements or structures that would not be feasible or appropriate under a contract; or
 - b) Would provide an opportunity to expand the defense supply base in a manner that would not be practical or feasible under a contract.

Science and Technology Protection (S&TP). The Government will conduct an S&TP Initial Risk Review for CSPs categorized as Selectable IAW the review procedures outlined in Attachment 4. The Government may ultimately decline to award a Selectable proposal as explained in Paragraph II(a)(3) of the attachment.

12 ADDITIONAL INFORMATION

POINT OF CONTACT: General questions regarding this AFRL Enterprise CSO may be sent to afrl.cso.mailbox@us.af.mil. Utilized the email subject line: "AFRL CSO General Question(s)".

Due to the large amount of expected interest in this CSO, and to maintain a written record of questions, this is the only email address that will be used for communication. Material questions and answers (Q&A) will be published and updated to the GPE.

Specific Spiral Questions and Submittals: Any questions regarding One-Step or Two-Step Spirals shall be sent to the POC identified in the Spiral.

DATA RIGHTS: Resultant awards are subject to DFARS 252.227-7990 (DEVIATION 2026-00036), *Technical Data-Commercial Products and Commercial Service*, or equivalent, when the awardee will be required to deliver technical data pertaining to commercial

products, commercial components, commercial services, or commercial processes. It is the Government's intention to acquire only Technical Data, Computer Software, and Computer Software Documentation data rights necessary to satisfy agency needs. The data rights will be negotiated at the contract or OTP level.

FOREIGN PARTICIPATION: Foreign firms are advised that they will not be permitted to participate in this CSO. The research and test data produced under a resultant contract or OTP may contain Military Critical Technology List (MCTL) information whose export is restricted by Export Control Act (Title 22, U.S. Sec 2751, et seq.) or the Export Administration Act of 1979, as amended (Title 50, U.S.C., App. 2401, et seq.).

NON-GOVERNMENT ADVISORS: PROPRIETARY information may be provided to Federally Funded Research and Development Centers (FFRDC), Systems Engineering and Technical Assistance (SETA), Systems Engineering and Integration (SE&I), and/or Advisory and Assistance Services (A&AS) contractors working for the Government for the purpose of evaluating/reviewing CSB/CSP submissions. These non-Government advisors have signed a non-disclosure agreement (NDA) with the Government.

DEBRIEFINGS: The Government will conduct written, post-award debriefings upon request and in accordance with FAR 52.212-1(e); debriefings will address the evaluation factors contained herein only.

GOVERNMENT FURNISHED PROPERTY (GFP) AVAILABILITY: GFP is not anticipated to be made available under any resulting contract or OTP; however, a determination regarding GFP will be made for each award. In accordance with FAR 45.201(b), the contractor is responsible for all costs related to making the property available for use, such as payment of all transportation, installation, or rehabilitation costs.

BASE SUPPORT/NETWORK ACCESS: Base support will be determined at the Spiral level.

13 ATTACHMENTS AND APPENDICES

Attachment 1: Areas of Interest (AOI)

Attachment 2: CSB Template

Attachment 3: CSP Template

Attachment 4: AFRL Solicitation Language for Security Risk Review

Appendix 1: RESERVED

Appendix 2: Security Program Questionnaire

326 *Appendix 3: Research and Related Senior and Key Person Profile Worksheet*

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